

## Ashwani Kumar v. State of U.P.

Allahabad High Court · Division Bench · 16 July 2013 · Writ-C No. 37652 of 2013 · **Writ disposed; no tenant connection without considering landlord objection.**

### HEADNOTE

A landlord alleged that occupants claiming tenancy were seeking a new connection without his no-objection. Disposing of the writ at the threshold, and recording the licensee's statement that a tenanted-premises connection requires the landlord's no-objection under the Supply Code, the Court directed the Executive Engineer not to grant supply to those occupants without first considering the landlord's pending objection.

### FACTUAL SUMMARY

The petitioner, owner of the property, alleged that respondents 4 and 5 were seeking a new electricity connection from the Urban Distribution Division at Moradabad as his tenants, without his no-objection. He contended that the Supply Code did not permit a tenant connection without the landlord's consent, and had objected to the Executive Engineer, Vidyut Nagariya Vitran Khand (First), Moradabad, on 28 June 2013. Counsel for the corporation stated that a connection in tenanted premises could be granted only after the landlord's no-objection. Private respondents were not noticed.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

landlord-objection-before-tenant-connection

#### HOLDING

The distribution licensee shall not grant an electricity connection to persons claiming tenancy of the petitioner's premises without first considering the landlord's objection already filed before the Executive Engineer. ¶ 1

**FLAG** Order cites the Electricity Supply Code generally for landlord no-objection on tenanted premises; no clause number is given.

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE LANDLORD'S OBJECTION AND WHETHER THE OCCUPANTS WERE ENTITLED TO A CONNECTION

The Court did not decide whether a landlord's no-objection is a mandatory condition under the Supply Code, nor whether respondents 4 and 5 could be given supply; that was left to the Executive Engineer. ¶ 1